Mutual Non-Disclosure Agreement

This Agreement is made between Northwind Analytics Ltd., 14 Wharf Road, London N1 7GR, United Kingdom (“Northwind”), and Kestrel Design Studio LLC, 220 Harbor Street, Portland, ME 04101, United States (“Kestrel”), each a “party”.

1. Purpose

The parties wish to explore a possible collaboration on the design of a data platform for retail analytics (the “Purpose”). In the course of their discussions each party may disclose to the other information that it regards as confidential.

2. Confidential Information

“Confidential Information” means any information disclosed by one party (the “Discloser”) to the other (the “Recipient”), whether in writing, orally or by any other means, that is marked as confidential or that a reasonable person would understand to be confidential, including business plans, customer lists, prices, designs, source code and data.

3. Exclusions

Confidential Information does not include information that (a) is or becomes public through no fault of the Recipient; (b) was lawfully known to the Recipient before disclosure; (c) is lawfully received from a third party without a duty of confidence; or (d) is independently developed by the Recipient without use of the Discloser’s information.

4. Obligations

The Recipient shall use the Confidential Information only for the Purpose, shall not disclose it to any person other than its employees and advisers who need to know it for the Purpose and are bound by obligations of confidence at least as strict as these, and shall protect it with at least the care it uses for its own confidential information, and never less than reasonable care.

5. Required Disclosure

If the Recipient is required by law, regulation or court order to disclose Confidential Information, it may do so, provided that it gives the Discloser prompt written notice where lawful and discloses only the part that is legally required.

6. Return and Destruction

On written request, and in any event when the discussions end, the Recipient shall return or destroy all Confidential Information and confirm in writing that it has done so, except for

copies it must keep by law or that are held in routine backups, which remain subject to this Agreement.

7. No Licence

Nothing in this Agreement grants the Recipient any licence or right in the Discloser's intellectual property, other than the limited right to use Confidential Information for the Purpose. All Confidential Information is provided "as is".

8. No Obligation

This Agreement does not oblige either party to disclose any particular information or to enter into any further agreement. Either party may end the discussions at any time by written notice.

9. Term

This Agreement takes effect on the date of the last signature and continues for two years. The obligations in sections 4 to 7 survive for five years after it ends, and for trade secrets for as long as they remain trade secrets.

10. Remedies

Each party acknowledges that damages alone may not be an adequate remedy for a breach of this Agreement and that the Discloser may seek injunctive relief in addition to any other remedy available to it.

11. Entire Agreement

This Agreement is the entire agreement between the parties about its subject and supersedes all earlier discussions. It may be changed only in writing signed by both parties.

12. Non-Solicitation

During the term of this Agreement and for twelve months after it ends, neither party shall solicit for employment any employee of the other party with whom it had contact in connection with the Purpose, except through general advertisements not aimed at those employees.

13. Notices

Notices under this Agreement shall be in writing and sent by email with a copy by recorded delivery to the addresses given above, or to any other address a party notifies to the other. A notice takes effect on the business day after it is sent.

14. Counterparts

This Agreement may be signed in counterparts, including by electronic signature, each of which is an original and which together form one agreement.

15. Governing Law

This Agreement is governed by the laws of England and Wales, and the courts of England have exclusive jurisdiction over any dispute arising from it.

Signatures

Signed by the authorised representatives of the parties.

Northwind Analytics Ltd.

Jordan Lee, Managing Director
Date: 8 October 2026

Kestrel Design Studio LLC

Priya Raman, Partner
Date: